

		Where, as here, the Defendant made a timely demand, but failed to timely post the jury deposit fee, the general rule is: “When a party that has timely given notice that it desires trial by jury then loses the jury right because of technical noncompliance with some element of statutory procedure—such as failure to pay jury fees at the right time or in the right amount—lack of hardship to the other parties or the court is generally controlling, absent other factors that weigh against relief.” (<i>TriCoast Builders, Inc. v. Fonnegra</i> (2024) 15 Cal.5th 766, 782.) Defendant has shown that the belated posting of jury fees was inadvertent. While Plaintiff contends it has been prejudiced in that its counsel has litigated the case as if it were going to be a court trial, there is no evidence that the court ever indicated that the matter would be tried by the court rather than a jury. Indeed, as late as 6/16/26, the court was indicating that the matter was scheduled as a jury trial. (See 6/16/36 Minute Order (ROA 166) [“Jury Trial continued to”].) Also, any purported prejudice could be remedied by a trial continuance. Defendant’s request for judicial notice is DENIED as it is not necessary to take judicial notice of materials previously filed in this matter. A jury trial remains set for 8/17/26. Defendant to give notice.
8	Bank of America, N.A. vs. Resendiz	<u>Motion to Set Aside Default and Default Judgment</u> The court GRANTS Defendant LINDA JANE RESENDIZ’s Motion to Set Aside Default and Default Judgment, made pursuant to sections 473(b), 473(d) and 473.5 of the Code of Civil Procedure. Background: Plaintiff filed a Proof of Service re Summons and Complaint on 2/10/26, indicating that substitute service on Defendant Resendiz was completed on 2/10/26. (ROA 19.) Service was attempted and documents were